

25NWLC00089 25NWLC00089

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-02

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Case Number: 25NWLC00089 Hearing Date: July 2, 2026 Dept: Y

25NWLC00089: DISCOVER BANK vs CHRISTIAN FLORES

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Discover Bank ("Plaintiff"), the supporting declaration, and all relevant court records.

Plaintiff requests to vacate the Default Judgment entered against Defendant Christian Flores ("Defendant") on October 10, 2025 because it has brought to Plaintiff's attention that Defendant may not have been properly served with the Summons and Complaint. Plaintiff argues that in the interests of justice and pursuant to Code of Civil Procedure section 473(b), the judgment should be set aside and vacated. Plaintiff asks that the case be restored to active status.

Pursuant to Code of Civil Procedure section 473 (b), the Court may set aside any void judgment or order. Code of Civil Procedure section 187 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on those statutes, and the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Vacate Default Judgment. Accordingly, the Default Judgment entered against Defendant on October 10, 2025 is vacated. The Court, on its own motion, also sets aside and vacates the Writ of Execution issued by the Court on February 3, 2026.

The Court grants Defendant 20 days leave to file a responsive pleading.

The Court sets an Order to Show Cause Re: Status of Case on January 7, 2027. The Court expects that this date will be converted to the trial date after the responsive pleading is filed by Defendant.

Plaintiff to give notice.